

| G.S. 150B-21.3A Report for 07 NCAC 13C, STATE LAKES REGULATIONS |                                                                                   |                   |                                                            |                                         |                                               |                                                              |                             |                                            |                                                                  |                                                         |                                                                                |                |
|-----------------------------------------------------------------|-----------------------------------------------------------------------------------|-------------------|------------------------------------------------------------|-----------------------------------------|-----------------------------------------------|--------------------------------------------------------------|-----------------------------|--------------------------------------------|------------------------------------------------------------------|---------------------------------------------------------|--------------------------------------------------------------------------------|----------------|
| Agency - Department of Natural and Cultural Resources           |                                                                                   |                   |                                                            |                                         |                                               |                                                              |                             |                                            |                                                                  |                                                         |                                                                                |                |
| Comment Period - May 3, 2017 - July 3, 2017                     |                                                                                   |                   |                                                            |                                         |                                               |                                                              |                             |                                            |                                                                  |                                                         |                                                                                |                |
| Date Submitted to APO - Filled in by RRC staff                  |                                                                                   |                   |                                                            |                                         |                                               |                                                              |                             |                                            |                                                                  |                                                         |                                                                                |                |
| Subchapter                                                      | Rule Section                                                                      | Rule Citation     | Rule Name                                                  | Date and Last Agency Action on the Rule | Agency Determination [150B-21.3A(c)(1)a]      | Implements or Conforms to Federal Regulation [150B-21.3A(e)] | Federal Regulation Citation | Public Comment Received [150B-21.3A(c)(1)] | Agency Determination Following Public Comment [150B-21.3A(c)(1)] | RRC Determination of Public Comments [150B-21.3A(c)(2)] | RRC Final Determination of Status of Rule for Report to APO [150B-21.3A(c)(2)] | OAH Next Steps |
|                                                                 | SECTION .0100 - GENERAL PROVISIONS                                                | 07 NCAC 13C .0101 | AUTHORITY                                                  | Amended Eff. October 1, 1984            | Necessary without substantive public interest | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0102 | DEFINITIONS                                                | Amended Eff. August 1, 1988             | Necessary without substantive public interest | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0105 | PERMITS                                                    | Eff. February 1, 1976                   | Necessary with substantive public interest    | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 | SECTION .0200 - COMMERCIAL ENTERPRISES                                            | 07 NCAC 13C .0201 | COMMERCIAL ENTERPRISES                                     | Eff. February 1, 1976                   | Necessary with substantive public interest    | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0202 | SCIENTIFIC RESEARCH: EDUCATIONAL: NONCOMMERCIAL ACTIVITIES | Eff. February 1, 1976                   | Necessary with substantive public interest    | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0203 | COMMERCIAL ACTIVITIES IN OR UPON STATE LAKES               | Eff. February 1, 1976                   | Necessary with substantive public interest    | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 | SECTION .0300 - CONSTRUCTION AND USE OF PIERS AND OTHER STRUCTURES ON STATE LAKES | 07 NCAC 13C .0301 | PERMITS                                                    | Eff. February 1, 1976                   | Necessary with substantive public interest    | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0302 | STRUCTURES PROHIBITED ON CERTAIN STATE LAKES               | Eff. February 1, 1976                   | Necessary with substantive public interest    | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0303 | PERMISSIBLE STRUCTURAL DIMENSIONS                          | Eff. February 1, 1976                   | Necessary with substantive public interest    | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0304 | LIMITS ON ELEVATED STRUCTURES                              | Eff. February 1, 1976                   | Necessary with substantive public interest    | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0305 | PERMITS FOR STRUCTURES EXISTING AS OF FEBRUARY 1, 1974     | Amended Eff. April 4, 1979              | Necessary with substantive public interest    | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0306 | FEES                                                       | Amended Eff. March 1, 1992              | Necessary with substantive public interest    | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0307 | CONDITION OF DOCKS: ETC.                                   | Eff. February 1, 1976                   | Necessary with substantive public interest    | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0309 | ELIGIBILITY FOR PERMITS                                    | Eff. February 1, 1976                   | Necessary with substantive public interest    | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0310 | REVOCATION OF PERMITS                                      | Eff. February 1, 1976                   | Necessary with substantive public interest    | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0311 | APPLICATION FOR STRUCTURAL PERMITS                         | Eff. February 1, 1976                   | Necessary with substantive public interest    | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0312 | PERMITS FOR STRUCTURES EXISTING ON FEBRUARY 1, 1974        | Amended Eff. April 4, 1979              | Necessary with substantive public interest    | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0313 | LIABILITY                                                  | Eff. February 1, 1976                   | Necessary without substantive public interest | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0314 | RIGHT OF ENTRY RESERVED                                    | Eff. February 1, 1976                   | Necessary with substantive public interest    | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0315 | NOTICES: RIGHT TO HEARING: HEARING PROCEDURES: APPEAL      | Amended Eff. October 1, 1988            | Necessary with substantive public interest    | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 | SECTION .0400 - MISCELLANEOUS STATE LAKES REGULATIONS                             | 07 NCAC 13C .0406 | WATER LEVEL                                                | Eff. February 1, 1976                   | Necessary without substantive public interest | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0407 | MOORING BUOYS                                              | Eff. February 1, 1976                   | Necessary without substantive public interest | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0408 | STATE PARKS REGULATIONS                                    | Eff. February 1, 1976                   | Necessary without substantive public interest | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |
|                                                                 |                                                                                   | 07 NCAC 13C .0409 | INFORMATION                                                | Amended Eff. April 4, 1979              | Unnecessary                                   | No                                                           |                             | Select One                                 | Select One                                                       | Select One                                              | Select One                                                                     | Select One     |